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File No.: EXP202301215AM

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 02/02/2023, the Director of the Spanish Agency for Data Protection sent an internal note to the General Subdirectorate of Data Inspection indicating the following:

“Through communication NI/00023/2023, this Agency has been informed of a possible infringement in the processing of personal data related to the facts described below.

This Agency has become aware of a possible infringement in the processing of personal data concerning the dissemination of a video, in a nightclub, in which numerous minors can be seen performing dances with sexual connotations.

In relation to the above, the need to analyze the implications regarding personal data protection and information security requires the opening of an investigation to clarify the reported facts and their authorship.

Therefore, the General Subdirectorate of Data Inspection is urged to initiate ex officio Preliminary Investigation Actions aimed at verifying these facts.”

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGD, being aware of the following points:

1) On 22/02/2023, the Inspection Services of this Agency collected samples of the news published (...) in the digital newspaper “20minutos” with the title “(...)”.

Additionally, on that same date, they accessed the profile of the nightclub “@***DISCOTECA.1” on the social network TikTok, where the video in question was not found.

2) On 02/06/2023, the Inspection Services of this Agency collected samples of the news published (...) in the digital newspaper “El Periódico” “(...)”.

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3) On 08/06/2023, a response was received from the City Council of Barcelona, with registration number REGAGE23e00036974245, to the information requests dated 23/02/2023 and 28/04/2023, in which it stated the following:

“Upon consulting the files, (...) there is currently a license with file number 03-2017-0039, held by ASOCIACIÓ OASIS CULTURAL, with CIF G65105298 and address at C. VENTALLÓ, NUMBER 4, FLOOR 1, 08025 BARCELONA.”

4) On 12/06/2023, 12/07/2023, and 04/09/2023, the ASOCIACIÓ OASIS CULTURAL was requested for the following information:

1. Information provided to attendees at the venue ***DISCOTECA.1, (...), regarding the processing of their personal data and the purposes of the various processing activities that may be carried out.

2. Consent from the parents or legal guardians of the minors for the publication of their personal data on social media and any other means of dissemination.

3. Detailed description of the recording and data retention system for minors, indicating the equipment used, personnel with access to this data, security measures implemented to prevent unauthorized access, and the retention period of the data and criteria for its establishment. Protocol for the deletion of data once this retention period has elapsed.

4. Measures implemented at the entrance control to prevent access to the venue by only boys and girls

of the permitted age and possible processing of minors' data resulting from this access control.

5. Activity license.

The first of the notifications, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of art. 43.2 of the LPACAP on 23/06/2023, as stated in the certificate in the file. Meanwhile, the other two notification attempts were made by postal mail, resulting in "Returned to Origin due to Excess (Not collected at the office)" on 01/09/2023 and 30/01/2023, respectively.

5) On 12/06/2023, the Inspection Services of this Agency collected samples of the news published (...) in the digital newspaper "El País" with the title "...".

6) By diligence dated 17/10/2023, the Inspection Services of this Agency incorporated into the file the video obtained from the profile "@A.A.A." of the social network X. During the playback of the video, it is observed that on the left side

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the TikTok profile "@***DISCOTECA.1" appears, and at the bottom, the following logo "***LOGO.1".

7) On 17/10/2023 and 01/12/2023, information was requested from the social network Twitter regarding the profile @A.A.A., including name, email, phone number, and IP address; no response was received.

8) On 17/10/2023, the Inspection Services of this Agency verified that the profile of the nightclub "@***DISCOTECA.1" on the TikTok social network again had content and announced its reopening on 14/10/2023. A video related to the investigation in these proceedings was published, downplaying the importance of the video in question.

9) On 11/12/2023, information was requested from Orange Espagne, S.A.U. regarding the subscriber with phone number ***TELÉFONO.1, without receiving any response.

10) As of 11/12/2023, it could not be verified that the video showing minors dancing in the nightclub ***DISCOTECA.1 was published on the profile "@***DISCOTECA.1" of the TikTok social network.

THIRD

O: On 17/01/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ASOCIACIÓN OASIS CULTURAL (hereinafter, the accused party), in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

This initiation agreement was notified in accordance with the rules established in the LPACAP through an announcement published in the Official State Gazette (hereinafter, B.O.E) on 08/02/2024.

FOURTH

O: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was found that no allegations had been received from the accused party.

Article 64.2.f) of the LPACAP - a provision of which the accused party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

From the actions taken in this procedure and the documentation in the file, the following has been

established:
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PROVEN FACTS

FIRST: On 15/01/2023 at 01:50 hours, a 45-second video was published on the social network X @A.A.A., under the title “(...)”, in which numerous minors are seen performing dances with sexual connotations. On the left side, the TikTok profile @***DISCOTECA.1 appears, and at the bottom, the following logo “***LOGO.1”.

SECOND: (...) at 13:30 hours, a news article was published in the digital version of the newspaper ‘El Periódico’, under the title “(...)”, with the following content:

“(...)”

THIRD: (...) at 13:34 hours, a news article was published in the digital version of the newspaper ‘20minutos’, under the title “(...)”, with the following content:

“(...)”

FOURTH: (...) at 15:22 hours, a news article was published in the digital version of the newspaper ‘El País’, under the title “(...)”, with the following content:

“(...)”

The news includes a screenshot of the video published on the TikTok profile @***DISCOTECA.1, in which numerous minors are shown with their faces pixelated in poses with sexual connotations.

FIFTH: On 22/02/2023 at 14:37 hours, the video in question does not appear on the TikTok profile of the nightclub (@***DISCOTECA.1).

SIXTH: On 17/10/2023, a video appears on the TikTok profile of the nightclub @***DISCOTECA.1 announcing its reopening on 14/10/2023. Its duration is 52 seconds, and it downplays the importance of the publication of the video subject to this sanctioning procedure.

SEVENTH: It is recorded that ASSOCIACIÓ OASIS CULTURAL, with CIF G65105298 and address at C/VENTALLO, nº4, floor 1, 08025 (Barcelona); is the holder of the activity license for the venue ***DISCOTECA.1, located at ***DIRECCION.1.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The image of a person, according to Article 4.1 of the GDPR, is a personal data as it makes the person identifiable, and its protection is therefore the subject of the GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular

by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

Article 4.2 of the GDPR defines ‘processing’ as: “any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

The inclusion of a person's image in publications that identifies or makes a person identifiable constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with the obligations set forth for the data controller in the GDPR and in the LOPDGDD.

III

Legality of the Processing of Personal Data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: “Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);

(...)”

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

This procedure was initiated because this Agency became aware of the dissemination of a video, in a nightclub, in which numerous minors can be identified performing dances with sexual connotations.

Following the preliminary investigative actions listed in the section “Background,” it is noted that news published by several media outlets points to the nightclub ***DISCOTECA.1 as responsible for disseminating

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through its TikTok social media profile (@***DISCOTECA.1) the video in question.

Requested by the City Council of Barcelona to identify the entity that owns or is responsible for the management of the aforementioned leisure venue, it is identified as ASSOCIACIO OASIS CULTURAL, with CIF G65105298.

Although it is true that during the execution of these actions it could not be verified that this content was published on the TikTok social media profile of the aforementioned nightclub, the Inspection Services found the controversial video attached to a post dated 01/18/2023 on the Twitter social media profile @A.A.A. Throughout the 45 seconds, numerous minors are observed performing dances with sexual connotations, with the TikTok social media profile "@***DISCOTECA.1" appearing on the left side of the video and the following logo "***LOGO.1" at the bottom.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that ASSOCIACIO OASIS CULTURAL disseminated through the TikTok social media profile @***DISCOTECA.1 a video where minors can be seen performing dances with sexual connotations; without any legitimizing cause as set out in Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679; (...)"

V

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

The aggravating circumstances are:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage and harm suffered; ASSOCIACIO OASIS CULTURAL has publicly disseminated a video of minors performing dances with sexual connotations, which allows for their identification or makes them identifiable (Article 83.2.a) GDPR).

Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating circumstances:

- The impact on the rights of minors (Article 76.2.f) of the LOPDGDD).

The balance of the circumstances considered allows for the imposition of a fine of €10,000.00 (ten thousand euros) for the infringement of Article 6.1 of the GDPR.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of

the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ASOCIACIO OASIS CULTURAL, with NIF G65105298, for an infringement of Article 6.1 of the GDPR, classified in Article 83.5.b) of the GDPR, a fine of €10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to ASOCIACIO OASIS CULTURAL.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article

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98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000P (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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